

25CV02757 Randi Tate v. Bio SB, Inc., et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-05-20

Motion: Motion to Compel Further Responses to Special Interrogatories

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Tentative Ruling: Randi Tate v. Bio SB, Inc., et al

Case Number

25CV02757

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 05/20/2026 - 10:00

Nature of Proceedings

Motion to Compel Further Responses to Special Interrogatories

Tentative Ruling

For Plaintiff Randi Tate: Kaveh S. Elihu, Melad N. Haddad, Employee Justice Legal Group PC

For Defendants Bio SB Inc. and Alfonso Heras: Nicole K. Ricotta, Heather A. Quest, Anticouni & Ricotta PC

RULING

For the reasons set forth below, Bio SB, Inc.'s motion to compel Plaintiff to provide further responses to Special Interrogatories, Set One, is granted.

Plaintiff shall serve further, code-compliant responses, without objections, to Special Interrogatories Nos. 43, 45, 55, 57, and 59 no later than June 3, 2026.

Monetary sanctions in the amount of \$3,900.00 are awarded in favor of Bio SB, Inc. and against Plaintiff and Employee Justice Legal Group PC, jointly and severally, to be paid to counsel for Bio SB, Inc. no later than June 3, 2026.

Background

This action commenced on May 1, 2025, by the filing of the complaint by Plaintiff Randi Tate against Defendants Bio SB, Inc. and Alfonso Heras for: (1) Discrimination based on sex or gender; (2) Discrimination based on marital status; (3) Failure to take all reasonable steps to prevent and remedy discrimination; (4) Retaliation and wrongful termination; (5) Violation of Civil Code section 43; and (6) Violation of Civil Code section 52.1.

As alleged in the complaint:

Bio SB is a biotechnology corporation engaged in the development, manufacture, and distribution of immunohistochemistry products and detection systems used in cancer diagnosis and research. (Compl., ¶ 56.) Plaintiff and Heras, Bio SB's CEO and founder, met online on December 23, 2010, and were married on June 26, 2016. (Id. at ¶ 57.)

Plaintiff was employed by Bio SB from December 2011 through May 2022, as an Events and Travel Coordinator. (Compl., ¶ 58.) Plaintiff's duties included booking all domestic and international travel including flights, conventions, hotels, rental cars, airport parking, and meetings with doctors or hospitals, maintaining travel memberships, reviewing resumes, conducting background checks, performing bank deposits, and completing extensive data entry. (Id. at ¶ 59.) Plaintiff regularly worked while traveling and during nighttime hours, fully performing all the terms and conditions of her employment. (Ibid.)

While in Georgia caring for her elderly parents and addressing other family matters, Plaintiff learned that Heras had filed for divorce in January 2022. (Compl., ¶ 60.)

On January 14, 2022, Heras terminated Laboratory Manager Jarrett Stallings, Plaintiff's son from a prior marriage. (Compl., ¶ 61.)

On February 8, 2022, Plaintiff sought a restraining order against Heras. (Compl., ¶ 63.) On February 15, 2022, the Court granted a temporary restraining order (TRO) in favor of Plaintiff pending the hearing on the permanent restraining order (RO). (Ibid.) As a result of the TRO, Plaintiff began working directly with Bio SB's Director of Marketing, Patrick Peterson (Peterson), in the same role. (Ibid.)

Soon after obtaining the TRO, Bio SB, via Heras, retaliated against Plaintiff by initiating a pattern of pushing Plaintiff out of work, including a de facto suspension due to Heras's demands that Peterson stop providing Plaintiff work to perform. (Compl., ¶ 64.) The discrimination and retaliation against Plaintiff affected Plaintiff's employment terms, conditions, and privileges, impaired her job performance, and eliminated her prospects for advancement or promotion. (Ibid.)

On May 10, 2022, after being effectively suspended due to the denial of work, Defendants terminated Plaintiff. (Compl., ¶ 66.)

As relevant to the present motion, Plaintiff also alleges:

"As a direct, legal, and/or proximate result of the aforesaid acts of Defendants, Plaintiff has suffered actual, consequential, and incidental financial losses, including, without limitation, loss of income, earnings, salary and benefits, and the intangible

loss of employment-related opportunities in [her] field and damage to [her] professional reputation, all in an amount subject to proof at the time of trial.” (Compl., ¶ 74, italics added; accord ¶¶ 83, 90, 99, 107, 113.)

“For special damages, in the amount of no less than \$5,000,000, according to proof.” (Compl., Prayer for Relief, ¶ 2.)

“For actual, consequential, and incidental damages, in the amount of no less than \$5,000,000, according to proof.” (Compl., Prayer for Relief, ¶ 3.)

“For past and/or future economic damages, including all past and/or future lost earnings, wages, and/or benefits, in the amount of no less than \$5,000,000, according to proof.” (Compl., Prayer for Relief, ¶ 4.)

On August 20, 2025, Defendants answered the complaint with a general denial and 71 affirmative defenses.

On October 8, 2025, Bio SB served Special Interrogatories, Set One (SIs), on Plaintiff. (Ricotta decl., ¶ 6 & Exh. A.) On December 5, 2025, Plaintiff served her responses to the SIs. (Ricotta decl., ¶ 7 & Exh. B.)

On March 5, 2026, Bio SB filed the present motion to compel further responses to FI Nos. 43, 45, 55, 57, and 59. Bio SB also requests monetary sanctions against Plaintiff for the necessity of bringing the motion.

Plaintiff opposes the motion.

Analysis

Meet and Confer Efforts

A party moving for an order compelling further responses to interrogatories is required to meet and confer in a good faith attempt to resolve the issues prior to filing the motion to compel.

Plaintiff’s first argument is that the motion should be denied because “Bio SB’s efforts to meet and confer are inadequate and do not satisfy its obligations to meet and confer in good faith.” (Opp., p. 4, ll. 21-22.)

“A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a).)

By way of declaration, Bio SB’s counsel sets forth the meet and confer efforts as follows:

“On January 7, 2026, I sent a meet and confer letter to Plaintiff’s counsel, Melad N. Haddad, regarding the deficient responses Plaintiff Randi Tate had served on December 5, 2025. In this letter I requested a two-week extension on the deadline to file a Motion to Compel, until February 5, 2026. In this letter, I requested that Mr. Haddad contact me at his earliest convenience to set up a meeting to discuss the issues raised in my letter either in person or by telephone.” (Ricotta decl., ¶ 8 & Exh. C.)

“On February 12, 2026, Mr. Haddad sent me a written response to my January 7, 2026 meet and confer letter . . . Although Plaintiff agreed to supplement many of the responses, several issues nonetheless remained.” (Ricotta decl., ¶ 9 & Exh. D.)

"On February 17, 2026, I sent a second meet and confer letter to Mr. Haddad regarding the deficient responses to Defendant's Request for Admissions Nos. 1-13, Special Interrogatories, Nos. 43, 45, 55, 57, and 59, and Request for Production of Documents, Nos. 34 and 36." (Ricotta decl., ¶ 10 & Exh. E.)

"On March 2, 2026, Mr. Haddad sent me his response to my February 17, 2026 meet and confer letter." (Ricotta decl., ¶ 11 & Exh. F.)

"Despite my good faith attempts at resolving the disputes concerning the deficient responses to Special Interrogatories, Nos. 43, 45, 55, 57, and 59, Plaintiff and her counsel failed to respond in good faith to my meet and confer attempt and we were, therefore, unable to resolve the issues presented in this Motion to Compel." (Ricotta decl., ¶ 12.)

"The parties have communicated and agreed to several extensions on the deadline on this Motion to Compel in order to allow for us to fully meet and confer over the discovery disputes in an attempt to settle them. The current agreed-upon deadline for Defendant to file this Motion to Compel is March 5, 2026." (Ricotta decl., ¶ 13.)

The Court has reviewed the meet and confer letters. Bio SB's attempts were more than sufficient. Plaintiff made clear that she would not provide further responses.

Interrogatories

Code of Civil Procedure, section 2030.010 provides, "(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in anticipation of litigation or in preparation for trial." (Italics added.)

The SIs at issue are all "contention interrogatories" that seek facts supporting contentions made by Plaintiff in her complaint.

The SIs at issue are:

No. 43: "State all facts which support YOUR contention in YOUR COMPLAINT that YOU suffered the loss of employment related opportunities in YOUR field."

No. 45: "State all facts which support YOUR contention in YOUR COMPLAINT that YOU suffered damage to YOUR professional reputation."

No. 55: "State all facts which support YOUR contention in YOUR COMPLAINT that YOU have suffered special damages in the amount of no less than \$5,000,000."

No. 57: "State all facts which support YOUR contention in YOUR COMPLAINT that YOU have suffered actual, consequential, and incidental damages in the amount of no less than \$5,000,000."

No. 59: "State all facts which support YOUR contention in YOUR COMPLAINT that YOU have suffered past and/or future economic damages in the amount of no less than \$5,000,000."

A party shall respond to interrogatories, in writing and under oath, by (1) providing an answer containing the information sought, (2) exercising the option to produce writings, or (3) by objecting to the particular interrogatory. (Code Civ. Proc., section 2030.210 subd. (a).)

Code of Civil Procedure section 2030.220 provides that, "(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. (b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible. (c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party."

Plaintiff responded to SI Nos. 43 and 45 identically:

"Objection. This interrogatory is overly broad, burdensome and harassing because the information requested is not equally available to propounding party but, in majority part, is available only to propounding party to the exclusion of Plaintiff. Subject to and without waiving the foregoing objections, and to the extent that Plaintiff understands this interrogatory, Plaintiff responds as follows:

Soon after acquiring the temporary restraining order against HERAS, Defendant retaliated against Plaintiff for asserting her legal rights to not be subjected to domestic violence, including within the workplace itself. In retaliating against Plaintiff, Defendants effectively began a pattern of pushing Plaintiff out of work, including a de facto suspension due to HERAS' demands that Patrick Patterson

stop providing her work to perform.

Defendant's acts of discrimination and/or retaliation against Plaintiff sent a clear and direct message that divorcing Heras and/or engaging in protected activities – such as seeking a restraining order to cure acts of domestic violence, both at home and in the workplace, or pursuing a change in marital status – would not only be ignored but also jeopardize her professional success and lead to adverse employment consequences.

On or about May 10, 2022, after being effectively suspended due to the denial of work, Defendants committed their final act of discrimination and/or retaliation by wrongfully terminating Plaintiff. Plaintiff received a termination notice from Defendant. However, evidencing Defendant's lack of any legitimate, lawful reason for her termination, Defendant did not cite any reason for her termination. It was immediately clear to Plaintiff that she lost her job because of her marital status, i.e. no longer being married to HERAS, her status as a victim of domestic violence and/or because of her asserting her legal rights to be protected from workplace domestic violence and/or unlawful threats.

At all times, Defendants wrongful termination of Plaintiff was not an isolated adverse employment action but part of a broader and ongoing pattern of discriminatory conduct also included, among other things, the January 14, 2022 termination of Laboratory Manager Jarrett Stallings – Plaintiff's son from a prior marriage – and Defendants taking Plaintiff's work away from her, amounting to a de facto suspension for no legitimate reason. At all times, all of these adverse employment actions by Defendants were motivated by Plaintiff's gender, sex, marital status, status as a domestic violence victim and/or protected activities, including her complaints to and attempts to obtain a workplace-related restraining order from a government entity, the Superior Court of California.

At all times, Defendant's conduct, as described above, was enacted maliciously and in total disregard and oppression of Plaintiff's rights and welfare through its managing agents. As a result of these circumstances, Plaintiff has been, and

continues to be, damaged economically by the loss of both her current and future employment with Defendant, loss of income and loss of professional reputation. Plaintiff has also been, and continues to be, severely damaged both emotionally and physically through Defendant's unlawful conduct. The full extent of Plaintiff's damages will be subject to a matter of proof at trial."

Plaintiff's response is evasive and does not provide any facts that support her contentions of loss of employment related opportunities or damage to professional reputation. It is merely a regurgitation of allegations contained in her complaint. The SIs are straight-forward and typical contention interrogatories that simply require Plaintiff to state the facts that support her contentions. Without telling Plaintiff how to answer the SIs, an acceptable response would include something akin to: "On [date] Plaintiff suffered the loss of an employment related opportunity, with [employer], due to . . . The damages Plaintiff suffered include . . . People that have facts supporting this contention include . . . Documents that support this contention include . . ." If Plaintiff does not have any facts that support her contentions, she must so state.

Plaintiff responded to SI Nos. 55, 57, and 59 identically, to each other, as well. The responses are, again, prefaced with meritless objections followed by a regurgitation of allegations contained in the complaint, with absolutely no information regarding Plaintiff's claimed special damages. The responses are evasive and insufficient. The Court notes that the SIs pertain to Plaintiff's claims of Special Damages, rather than general damages.

" ' "Special damages" ' refers to out-of pocket losses that can be documented by bills, receipts, cancelled checks, and business and wage records. Special damages generally include medical and related expense, loss of income, and the loss or cost of services. . . . ' " [Citation.]" (Beeman v. Burling (1990) 216 Cal.App.3d 1586, 1599.)

Plaintiff should be aware of at least some of the special damages that she is claiming to have incurred. She must state all facts that support her contentions. If there are no facts supporting Plaintiff's claims of special damages, she must so state.

The motion to compel further response to the SIs will be granted. Plaintiff will be ordered to provide full code-compliant responses, without objections.

Monetary Sanctions

Bio SB seeks monetary sanctions in the amount of \$10,855.00 in fees incurred in bringing the motion. By way of declaration, Bio SB's attorney declares that 11.7 hours were spent preparing the motion and she estimated an additional 5 hours would be spent on review of the opposition papers, drafting a reply brief, and attending the hearing at \$650 per hour. (Ricotta decl., ¶ 14.)

"The Court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

Plaintiff did not act with substantial justification by asserting meritless objections and providing evasive responses that did not address the substance of any of the SIs. No other circumstances make the imposition of sanctions unjust. However, this was a simple motion, with only five responses at issue, and, while the rate charged is reasonable, the time claimed is excessive. Monetary sanctions for a total of 6 hours, at \$650 per hour will be imposed against Plaintiff and in favor of Bio SB, for a total sanctions award of \$3,900.00.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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